



**Office of
Victim Services**

FORENSIC RAPE EXAM DIRECT REIMBURSEMENT PROGRAM

PROVIDER BILLING MANUAL

March 2026

Version 2.0

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I. Introduction

Since 2005, the New York State Office of Victim Services (OVS) has reimbursed hospitals, accredited sexual assault examiner programs, and licensed healthcare providers (providers) for costs associated with performing forensic rape exams (FREs), also known as sexual assault medical forensic exams.

A sexual assault medical forensic exam is an “examination provided to a victim of sexual assault by medical personnel to gather evidence of a sexual assault in a manner suitable for use in a court of law.”¹ The examination includes, as appropriate, gathering information from the patient for the medical forensic history; an examination; coordinating treatment of injuries; documentation of biological and physical findings; medications and pharmaceuticals that are dispensed as part of the examination; and information, treatment, and referrals for sexually transmitted infections (STIs), pregnancy, suicidal ideation, alcohol and substance abuse, and other medical concerns; the examination may also involve collection of evidence from the patient.^{2, 3, 4}

OVS can directly reimburse providers for costs associated with sexual assault medical forensic exams through FRE Direct Reimbursement Program claims (“FRE claims”). FRE claims are distinct from general victim compensation claims that a victim or other eligible claimant submits to OVS for crime-related reimbursement requests. FRE claims have statutorily defined reimbursement caps based on the services provided to the victim.

Prior to June 2020, reimbursement was a flat rate of \$800 per exam. Since June 2020, OVS has reimbursed providers based on specific services rendered during the exam, medications dispensed, age of the patient, and whether a sexual offense evidence collection kit (SOECK) was obtained during the exam.

For FRE claims received on or before February 2, 2026, OVS is statutorily obligated to reimburse providers at the New York State (NYS) Medicaid rate for services. For FRE claims received on or after February 3, 2026, OVS will reimburse providers at usual and customary rates for services rendered to perform an FRE. OVS will reimburse providers at the NYS Medicaid Fee-for-Service (FFS) rates for pharmaceuticals dispensed as part of, and at the time of, the exam.⁵

State government agencies are not permitted to tell providers how to code medical records for billing purposes. The information presented in this manual is intended to give consistent billing guidance to medical providers to aid in completing FRE claims and billing forms. These reimbursement policies are not intended to dictate medical or prescribing practices. Detailed guidance on provider credentialing, training, and healthcare services related to FREs is issued by the NYS Department of Health.

1 28 CFR § 90.2(c) <https://www.ecfr.gov/current/title-28/chapter-I/part-90/subpart-A/section-90.2>

2 28 C.F.R. § 90.2(c) <https://www.ecfr.gov/current/title-28/chapter-I/part-90/subpart-A/section-90.2>

3 National Pediatric Protocol <https://www.justice.gov/ovw/file/846856/dl?inline>

4 National Adult/Adolescent Protocol <https://www.justice.gov/usdoj-media/ovw/media/1367191/dl?inline>

5 NYS Executive Law, Article 22 § 631(13) <https://www.nysenate.gov/legislation/laws/EXC/631>

II. Billing

a. Billing Providers

FRE claims may be submitted by any NYS accredited hospital or program for services rendered by a licensed medical provider practicing within NYS whose rendering of a sexual assault medical forensic exam is within the scope of practice of the discipline in which they hold a license.

b. Bill Type

Providers may submit bills directly to OVS when seeking reimbursement for services. The type of bills submitted depends on:

- The type of provider,
- Where services to conduct the forensic rape exam were rendered, and
- Which entity is responsible for compensating the rendering provider for services.

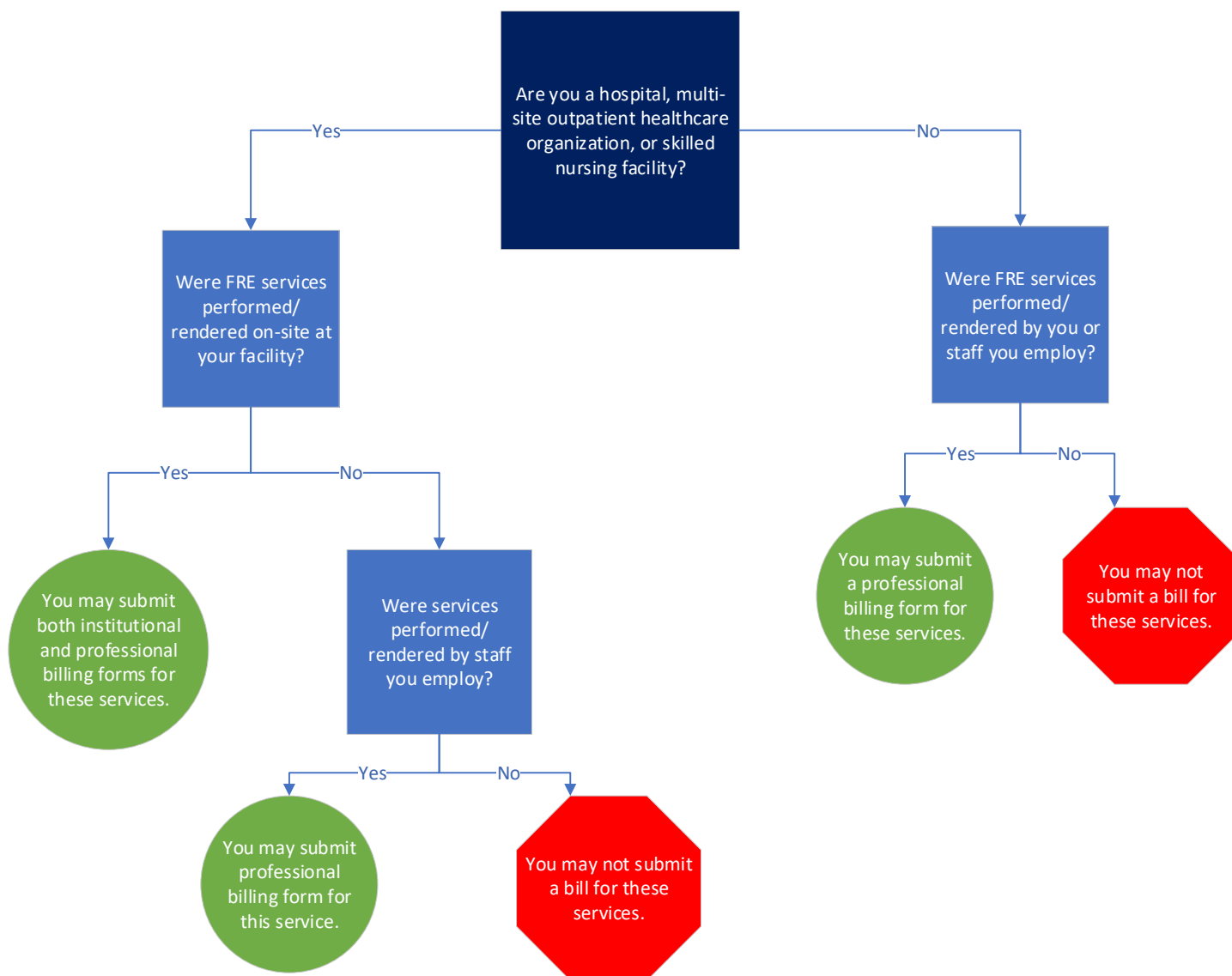
c. Acceptable Bill Type by Provider Type

The following list describes which types of bills to submit based on the type of organization submitting the bill.

- Medical Institutions/Facilities
 - May submit a professional bill for physician services rendered as part of the exam.
 - May submit institutional bills for equipment, materials, and other items necessary for performing services associated with an exam.
 - May submit an FRE Reimbursement Program Pharmacy Addendum (FRE Pharmacy Addendum) or other itemized bill for pharmaceuticals dispensed as part of, or at the time of, the exam.
- Independent Physicians/Providers
 - May submit a professional bill for services rendered to perform the sexual assault medical forensic exam.
 - May submit an FRE Pharmacy Addendum if they paid for the pharmaceuticals dispensed as part of, or at the time of, the exam.
- Child Advocacy Centers (CAC)
 - May submit professional bills for services rendered on-site at the CAC if the medical provider is compensated or procured by the CAC directly.
 - May submit an FRE Pharmacy Addendum if they paid for the pharmaceuticals dispensed as part of, or at the time of, the exam.

d. Acceptable Bill Type by Provider Type Decision Tree

The following diagram may assist billing providers understand what types of bills may be submitted by their organization.



e. Rendering Providers

Rendering providers must have a valid license to render medical services in NYS on the date of service for OVS to reimburse the billing provider for professional services rendered.

The following are a list of acceptable credentials for individuals who can be listed on an FRE claim as rendering services associated with an FRE:

- MD – Doctor of Medicine
- RN – Registered Nurse
- DO – Doctor of Osteopathic Medicine
- NP – Nurse Practitioner
- PA – Physician Associate

f. FRE Claim Form

Providers must submit a signed copy of the FRE Direct Reimbursement Claim Form for each FRE performed. Copies of this form are included in each SOEC kit, and the form can also be found on the OVS website: <https://ovs.ny.gov/FRE>. Distribution of SOEC kits is managed by the NYS Department of Criminal Justice Services (DCJS). DCJS provides NYS SOECKs at no cost to hospitals and other health care providers. More information can be found on the DCJS website: <https://www.criminaljustice.ny.gov/evidencekit.htm>.

Submission of the FRE Direct Reimbursement Claim Form is mandatory to receive reimbursement from OVS. This form captures the information required to process a claim. All sections must be completed to be eligible for reimbursement. To view an annotated copy of this form, see **Appendix A** at the end of this document. You can download a copy of this form at the following link: <https://ovs.ny.gov/fre-claim-application-medical-providers>.

OVS cannot provide guidance or training on how to code medical records or bill for services rendered or pharmaceuticals dispensed. If providers require technical assistance, OVS recommends seeking training from reputable online resources and/or working with a trained and certified professional medical coder to maximize reimbursement. More information and support can also be found on the International Association of Forensic Nurses website: <https://www.safeta.org/page/paymentfactsheet/>. Providers seeking guidance on coding HIV-related diagnoses and services can find more information from the National Alliance of State and Territorial AIDS Directors in this 2023 Billing and Coding Guide: <https://nastad.org/sites/default/files/2023-10/PDF-HIV-Prevention-BillingAndCoding-101223.pdf>.

g. Survivor Billing Choices

Survivors have the option to have OVS reimburse the FRE provider directly for the cost of services, have the FRE provider submit a claim on their behalf to their health insurance, or pay for the services out of pocket. Selecting more than one method of payment is not allowable. If the survivor chooses to have the provider seek reimbursement from OVS, the provider may not submit a claim for balance billing to the survivor's health insurance or directly to the survivor (out of pocket), per NYS Public Health Law and OVS Regulations.

h. Claim Line-Level Billing

OVS requires that all billing providers submit itemized invoices for services rendered in addition to the FRE Direct Reimbursement Claim Form.

OVS has its own itemized billing invoice, the FRE Direct Reimbursement Program Billing Form (OVS

Billing Form). To view an annotated copy of this form, please see **Appendix B** at the end of this document.

1. Itemized Billing

Providers submitting FRE claims to OVS must include a standardized billing form(s) detailing the claim line-level charges for services rendered. Along with the FRE Direct Reimbursement Claim Form, providers must submit a billing invoice that includes claim line-level detail for services rendered and any pharmaceuticals dispensed as part of, and at the time of, the exam.

Only standardized billing forms will be accepted to itemize services rendered. For claims received by OVS on or after February 3, 2026, acceptable billing forms include:

- OVS Billing Form (Professional or Institutional)
 - This form is available for download from the OVS website: <https://ovs.ny.gov/fre-billing-form>
- FRE Pharmacy Addendum
- HCFA-1500 (Professional)
- UB-04 (Institutional)

Please refer to the **Acceptable Bill Type by Provider Type** sections in this document for more information on the types of bills providers can submit. For billing providers who may submit both institutional and professional bills for FRE services, please be aware that OVS reimbursement will be paid at the OVS FRE claim level regardless of the number and type of bills submitted. It is at the discretion of the billing provider how to prorate reimbursement to different cost centers and/or providers who render services within the institution. All payments related to the same FRE, including any related laboratory or pharmaceutical services, are subject to the same cap.

It is best practice for billing providers to submit the FRE [Direct Reimbursement Claim Form](#) and all billing documents related to the same FRE all together. Billing providers may submit billing invoices separate from the original claim; however, all charges will be subject to the same cap. Only services provided by the sexual assault exam provider may be reimbursed as part of the same FRE claim. Please see the **Pharmaceuticals** section for more information on human immunodeficiency virus post-exposure prophylaxis (HIV PEP) reimbursement.

2. Diagnosis Codes

Most FRE claims contain at least one of the following diagnosis codes to be considered for reimbursement. Having one of these diagnosis codes is not required for reimbursement. However, billing forms that do not contain one of these codes are more likely to undergo additional review to ensure the services rendered were related to a forensic rape exam. In these cases, OVS will likely require the submission of medical records to ensure services rendered were part of an FRE.

- Z04.41 Encounter for Examination and Observation Following Alleged Adult Rape
- Z04.42 Encounter for Examination and Observation Following Alleged Child Rape
- T74.21XA Adult Sexual Abuse, Confirmed, Initial Encounter
- T76.21XA Adult Sexual Abuse, Suspected, Initial Encounter
- T74.22XA Child Sexual Abuse, Confirmed, Initial Encounter
- T76.22XA Child Sexual Abuse, Suspected, Initial Encounter
- Y04.8XXA Assault by Other Bodily Force, Initial Encounter
- T74.51 Adult Forced Sexual Exploitation, Confirmed
- T74.52 Child Sexual Exploitation, Confirmed
- T76.51 Adult Forced Sexual Exploitation, Suspected

- T76.52 Child Sexual Exploitation, Suspected
- O9A.411 (412, 413, & 419): Sexual Abuse Complicating Pregnancy, 1st (2nd, 3rd, & unspecified) Trimester
- Z.04.81 Encounter for Exam & Observation Following Forced Sexual Exploitation

3. Procedure Codes

The billing forms may include any valid Current Procedural Terminology (CPT) or Healthcare Common Procedure Coding System (HCPCS) codes for services rendered in the collection of specimens or any other services the provider deemed medically necessary as part of the FRE. If utilizing the OVS Billing Form, the provider must list all services rendered as part of the FRE, using the free-text fields to enter any billing codes not pre-filled and additional sheets as necessary. The services listed on the billing form must match the medical records, and OVS has the authority to request medical records associated with any FRE. Failure to provide copies of requested medical records may result in delayed or denied reimbursement.

4. Pharmaceuticals

OVS reimburses providers for the cost of pharmaceuticals dispensed as part of an FRE, including but not limited to medications for HIV PEP treatment. Charges for pharmaceuticals dispensed as part of, and at the time of, the FRE should be itemized on the FRE Pharmacy Addendum. A copy of this form can be found on the OVS website: <https://ovs.ny.gov/fre-billing-form>.

Providers must use the FRE Pharmacy Addendum or standardized billing form, like UB-04, to claim reimbursement for pharmaceuticals dispensed as part of the forensic rape exam, including but not limited to HIV PEP medications. Pharmaceutical reimbursement is based on the NYS Medicaid Formulary File (Formulary File) fee schedule. Only codes listed on this fee schedule will be reimbursed. However, OVS will maintain a fee schedule history and reimburse for pharmaceuticals previously listed in the Fee Schedule, that were valid on the date of service but may no longer be valid at the time of claim submission or processing, at the most recent Maximum Reimbursable Amount (MRA) rate available. More information about this file can be found on the NYS Department of Health eMedNY website at <https://www.emedny.org/ProviderManuals/Pharmacy/>. Questions about MRA rates in the Formulary File should be directed to NYS Department of Health, Office of Health Insurance Programs.

Institutions may submit an FRE Pharmacy Addendum for pharmaceuticals that were prescribed and dispensed as part of, and at the time of, the exam. Providers seeking reimbursement for prescriptions, including HIV PEP, prescribed as part of, and at the time of, the FRE and filled at the hospital pharmacy associated with the hospital submitting the FRE claim, may submit the FRE Pharmacy Addendum and subsequent invoices to OVS for pharmaceutical reimbursement.

In the event a victim/survivor declines to receive HIV PEP medication from the FRE billing provider, victims/survivors or their guardians may submit an OVS victim compensation claim application to request reimbursement for out-of-pocket costs associated with HIV PEP. Please note that victim compensation claims are subject to the agency's payer of last resort law which means the victim/survivor's health insurance must be billed prior to receiving reimbursement from OVS. If the victim/survivor does not have health insurance, or HIV PEP medications are not a covered benefit, OVS may reimburse the victim/survivor or the guardian's out-of-pocket costs. For more information on the victim compensation program, please visit <https://ovs.ny.gov/victim-compensation>.

III. Reimbursement

a. Eligible Services

OVS reimburses medical providers for costs associated with performing sexual assault medical forensic exams, with or without procedures necessary for a SOECK or dispensing medication, including HIV PEP medications.

OVS reimburses providers for services rendered to conduct an FRE, including costs associated with gathering forensic evidence as part of a SOECK. There are currently no standardized medical billing codes for SOECK collection procedures, nor evaluation and management specifically for SOECK collection. Providers submitting reimbursement claims to OVS are expected to submit an OVS Billing Form for specific services and procedures associated with conducting the FRE, including any procedures necessary for a SOECK. Multiple providers may not bill for the same services rendered to the same patient.

Only services rendered as part of the FRE can be reimbursed under the FRE claim. Procedures and other services that are deemed to not be related to the FRE may not be reimbursed as part of the FRE claim. This will be reflected in any explanation of benefits documents provided by OVS. If providers have additional questions about why certain charges were not reimbursed, they may contact OVS at FRE@ovs.ny.gov and request more information, including a meeting to discuss specific claims.

Follow-up visits are not covered under the FRE claim. Medical providers are encouraged to refer patients to victim assistance programs to submit claims to the victim compensation program to cover any out-of-pocket costs associated with follow-up care following a sexual assault that are not part of the FRE. Please note: OVS is the payer of last resort. That means, if a patient has health insurance, and they are seeking reimbursement for crime-related expenses outside the scope of the FRE, their insurance must be billed first. Any expenses or amounts not covered by insurance can be submitted to OVS for reimbursement. More specifically, patients must first bill their health insurance for out-of-pocket costs that may be related to the original sexual assault but not rendered at the time of the FRE.

b. Reimbursement Tier Maximums

OVS reimbursement tiers are based on services rendered, whether a SOECK was collected, and whether medications were dispensed. The following are descriptions of the tiers and what is included under each:

Tier 1

- Reimbursement for this tier is capped at \$800.
- A sexual assault exam was performed, but no SOECK was used and no HIV PEP meds were dispensed.

Tier 2

- Reimbursement for this tier is capped at \$1,200.
- A sexual assault exam was performed, a SOECK was used, and no HIV PEP meds were dispensed.
 - As previously noted in this manual, there are no specific billing codes for a SOECK, and providers are expected to bill for each of the services rendered for specimen collection separately, indicating each procedure with its own applicable procedure code on the itemized bill. Selecting “SOECK” on the claim form does not automatically result in any

additional reimbursement. Selecting this option only allows for a higher reimbursable amount as part of FRE claims processing.

Tier 3

- Reimbursement for this tier is capped at \$2,500.
- A sexual assault exam was performed, with or without SOECK services rendered, and a 28-day HIV PEP medication regimen was provided.

c. Reimbursement Rates

Accepting reimbursement from OVS for costs associated with performing an FRE and dispensing medication acknowledges that the billing provider accepts this reimbursement as payment in full. The billing provider may not bill victims/survivors or their guardians for the difference between charged amounts and the amount reimbursed by OVS.

OVS reimburses for services rendered based on standard medical billing codes. For FRE services, billing providers should utilize valid, standard billing codes, that is, CPT and HCPCS codes, to denote services rendered on the billing form. Billing providers should utilize National Drug Codes (NDCs) to classify which pharmaceuticals were dispensed as part of, and at the time of, the FRE.

Effective February 3, 2026, reimbursement rates for services rendered to conduct the FRE are based on usual and customary amounts reimbursed by insurance companies to medical providers in NYS. OVS worked with FAIRHealth to develop a fee schedule. Some of the services commonly registered as part of an FRE do not have a usual and customary allowed amount under FAIRHealth's methodology. In these instances, OVS will determine the allowed amount. The procedure code fee schedule is posted publicly on the OVS website, and rates will be updated at least annually.

Reimbursement rates for pharmaceuticals are based on the NYS Medicaid pharmaceutical fee schedule, and valid NDCs for reimbursable drugs can be found at the link for pharmacy fees in the **Pharmaceuticals** section. These codes may be recorded on the FRE Pharmacy Addendum. Pharmaceutical reimbursement is based on the allowed amount or MRA cost at the time the claim is processed by OVS.

OVS will only pay providers the per unit allowed amount based on the fee schedule and Formulary File, regardless of how much was charged to OVS for that service or pharmaceuticals. OVS will pay the sum of the allowed amounts on a given claim, per the fee schedule and Formulary File, up to the statutory caps. Providers will be reimbursed for the total allowed amounts associated with services rendered, lab services, and pharmaceuticals dispensed as part of, and at the time of, the exam up to the tier caps. It is the responsibility of the billing provider to ensure the standard billing forms itemize reimbursable services with appropriate and acceptable procedure codes and NDCs.

Reimbursement is bill-type specific. For services rendered in hospitals or other institutional settings, both physician/professional and institutional bills can be submitted for the same exam. Providers will be asked to provide their National Provider Identifier (NPI) numbers on bills.

d. Reimbursement Policies

1. Tiered reimbursement maximums will be applied to the sum of all bills submitted as part of the same claim.
 - a. Providers submitting both institutional and professional bills, along with an FRE Pharmacy Addendum, are encouraged to submit all billing forms/invoices at the same time.
 - b. Bills are reimbursed up to the claim tier maximum allowed amount across all bill types.
 - c. OVS is not responsible for dispersing equally between separate bills/invoices if providers choose to submit institutional and professional bills. It is the responsibility of the billing providers and physicians to determine how to disperse reimbursement between different cost centers within their institution.
 - d. Providers who submit bills for additional pharmaceutical charges at a later date will still be subject to reimbursement under the overall claim cap.
 - e. Additional bills submitted for the same victim, date of crime, date(s) of service, bill type, and provider may be rejected as duplicate claims.
2. If the amount charged is less than the allowed amount for a given billing code, the amount charged will be reimbursed. If the amount charged is greater than the allowed amount for a given billing code, the allowed amount will be reimbursed.
3. If procedure code modifiers are present, reimbursement will be based on the amount for that given modifier provided a different rate is reflected in the fee schedule.
4. Only services and pharmaceuticals that are related to the forensic rape exam may be reimbursed under an FRE claim. Other charges billed on the claim but found to be unrelated to the exam will not be reimbursed under an FRE claim.
 - a. For example, if a patient presented in the ER for a sexual assault, but they were also found to have uncontrolled diabetes, services and medication related to the patient's diabetes would not be reimbursed by OVS under an FRE claim.
5. OVS-Specific Codes: Periodically, OVS may create agency-specific codes for services and determine the usual and customary allowed amount for each service. These services, and their allowed amounts, will be posted on the OVS website. Line-level reimbursement for these services or pharmaceuticals will be subject to the overall claim maximums like other standard billing codes.
6. Reimbursement Methodology
 - a. Procedure Claim Line-Level Reimbursement = Units per code * Allowed Amount
 - i. If charged amount is $\geq$ allowed amount, then allowed amount
 - ii. If charged amount is $<$ allowed amount, then charged amount
 - b. Pharmaceutical Claim Line-Level Reimbursement = Units per code * MRA Cost
 - i. Reimbursement is based on the MRA cost at the time the claim is processed by OVS.
 - ii. If charged amount is $\geq$ MRA cost, then MRA cost
 - iii. If charged amount $<$ MRA cost, then charged amount
 - iv. If units $\geq$ maximum quantity, then OVS will reimburse up to the maximum quantity
 - v. If units $<$ maximum quantity, then OVS will reimburse for the units ordered
 - c. Claim Header Reimbursement Amount = Sum of all procedure and pharmaceutical line-level reimbursements

IV. Claim Rejections and Resubmissions

FRE claims that are rejected will be returned to providers along with the reason(s) for rejection. Providers may resubmit corrected claims containing the requisite information, and OVS will reprocess the claim. Resubmitted claims may be sent to OVS beyond the 180 days from the date of service listed on the claim provided the original claim was submitted within the 180 days from the date of service. The following is a list of common rejection reasons that providers often see for FRE claims. Please note, this is not an exhaustive list.

Sample List of Common FRE Claim Rejections
The date of service indicated on the attached invoice does not match the date of exam listed on the FRE claim form.
The FRE claim form was not received within 180 days of the date of the exam.
The FRE claim form indicated that the facility directly provided HIV PEP meds to the patient but did not indicate the costs associated with the HIV PEP meds on the invoice. If HIV PEP meds were provided, but no reimbursement is being requested for the costs associated with the medications, supporting documentation indicating that the medication was provided to the patient must be submitted. If HIV PEP meds were only prescribed to the patient, the FRE claim form should indicate that the medications were not provided.
A valid sexual assault diagnosis code was not indicated on the invoice.
The date of birth given on the FRE claim form is different from the date listed on the attached invoice. Please confirm the victim's date of birth.
The application is not fully completed: The date of crime is incomplete or missing. If an exact date of crime cannot be determined, please provide the month and year or season and year.
The application is not fully completed: The victim/legal guardian must select and initial one of the options provided in Section Three. Please note that, beginning with all claims received for the date of service 2/1/21 and continuing thereafter, we will be returning every claim that does not include the victim/legal guardian's initials.
The total invoice amount is not equal to the sum of the treatment amounts.
The application is not fully completed: The location of crime (city) is missing or incomplete.
The victim's date of birth given on the FRE claim form is different from the victim's date of birth listed on the OVS Billing Form. Please confirm the victim's date of birth.
At least one valid physical examination billable code was not submitted for all victims.
The required documents were not included with the application, specifically: Itemized bill with proper billable codes.



Appendix A

NEW YORK STATE OFFICE OF VICTIM SERVICES MEDICAL PROVIDER FORENSIC RAPE
EXAMINATION DIRECT REIMBURSEMENT CLAIM FORM (6/20)

INSTRUCTIONS: This form is to be used when a NYS licensed healthcare provider is directly billing the New York State Office of Victim Services (OVS) for reimbursement of costs associated with providing a forensic exam for a victim of sexual assault.

(1) Fill in all blanks on this form.

(2) Attach: Itemized bill and supporting documentation for HIV PEP Meds were

(3) Mail the completed form and all attachments to: NYS
Office of Victim Services
Attn: FRE Processing
80 S. Swan Street, 2nd Floor Albany,
New York 12210

All Sections must be completed

Must be complete. Use
either a specific date,
month/year, or
season/year.

SECTION ONE. VICTIM INFORMATION (TO BE COMPLETED BY MEDICAL PROVIDER)

Must be completed; doesn't have to be in
NYS.

Date of Crime _____ Location of Crime (City) _____ (county) _____

Victim's Name _____ Aliases, ex. "Jane Doe,"
cannot be accepted.

Date of Birth _____ Social Security Number _____ Must be completed.
May use "N/A", "not
available", etc.

SECTION TWO. BILLING PROVIDER INFORMATION (TO BE COMPLETED BY MEDICAL PROVIDER)

Billing Provider Federal I.D. Number _____ This is your
Federal EIN. Date of Exam _____

Billing Provider Name _____ This is the facility where
the exam was conducted, not
the examiner. Operator Certificate or Facility ID.# _____

Address _____ State _____ Zip _____

Billing Department Contact Person _____ Billing contact
should be someone
who is familiar
with OVS billing. Phone Number () _____

Was a Sexual Offense Evidence
Collection (SOEC) Kit Used? _____ SOEC Kit Tracking # _____ Tracking # is
(Required once tracking is available) provided with
kit.

Were HIV PEP Meds Provided? _____ No _____ Yes _____ If yes: _____ 7 Day Starter Pack _____ Full Regimen
28 Day Pack

Please select one option above and indicate on attached
invoice.

The billing provider and other service providers, by law, shall not bill the victim for these services. Payment made to the providers by
OVS under the Direct Reimbursement Program shall be considered by all providers as payment in full.

SECTION THREE. VICTIM INSURANCE WAIVER (TO BE COMPLETED BY VICTIM)

- The law requires that the victim be advised orally and in writing that
- I have been fully advised of the options of payment for the forensic
decision. I understand that I may use private insurance benefits, including

One of these options must be initialed by
victim/guardian. If option 3 is selected, do not
bill.

Medicaid, Medicare, HMO or any other insurance program for payment of the forensic exam provided to me. I have also been
advised that I will have to use my private insurance if I file a claim with OVS for other medical services outside of the forensic
exam.

Initial your selection for Option #1, #2 or #3 below:

_____ Option # 1 – I choose not to use my private insurance benefits but request that the OVS be billed directly. I decline
to provide such information regarding private health insurance benefits because I believe that the provision of such
information would substantially interfere with my personal privacy or safety.

_____ Option # 2 – I do not have private insurance benefits and request that OVS be billed directly.

_____ **Option # 3** – I choose to use my private insurance benefits for payment, or I choose to pay for my care

Signature dates
cannot pre-date
exam.

Victim/Legal Guardian Name (Print or Type): _____

Victim/Legal Guardian Signature: _____ Date: _____

Examiner Name
(Print or Type): _____

All examiner
info must be
complete.

Examiner
(Signature): _____

Profession: _____ License # _____ Date: _____

If you have questions, call the NYS Office of Victim Services at (800) 247-8035 or (518) 457-8727.



Appendix B

NYS OFFICE OF VICTIM SERVICES
FORENSIC RAPE EXAM (FRE) DIRECT REIMBURSEMENT PROGRAM BILLING

Use these boxes to
indicate if facility
or physician bill.

- THIS FORM MUST BE USED FOR FRE CLAIM BILLING.
- USE ADDITIONAL COPIES OF THIS FORM IF SERVICES RENDERED EXCEED SPACE PROVIDED.
- OVS USES NYS MEDICAID RATES TO CALCULATE REIMBURSEMENT FOR SERVICES AND PHARMACY.
- COMPLETE SEPARATE FORMS FOR FACILITY AND PHYSICIAN BILLS AS NEEDED.

PLACE 'X' IN CORRESPONDING BOX TO INDICATE BILL TYPE (choose one): FACILITY BILL ☐ PHYSICIAN BILL ☐

PATIENT NAME: _____ PATIENT DOB: _____

BILLING PROVIDER NAME: _____

PROVIDER PHONE: _____ BILLING PROVIDER TAX ID: _____

PATIENT ACCOUNT NUMBER: _____ INVOICE DATE: _____

RENDERING PROVIDER (PRINT NAME): _____

DATE OF SERVICE: _____

SUM OF TOTAL CHARGES (Including all visit and pharmacy charges): \$ _____

Total sum will
auto-populate as
you complete form.

DIAGNOSIS CODES:

DX CODE	DESCRIPTION	DX CODE	DESCRIPTION
T76.22XA	CHILD SEXUAL ABUSE, SUSPECTED, INITIAL ENCOUNTER	O9A.413	SEXUAL ABUSE COMPLICATING PREGNANCY, 3 RD TRIMESTER
T76.21XA	ADULT SEXUAL ABUSE, SUSPECTED, INITIAL ENCOUNTER	Z04.81	ENCOUNTER FOR EXAM OF VICTIM, SEXUAL EXPLOITATION
T74.22XA	CHILD SEXUAL ABUSE, CONFIRMED, INITIAL ENCOUNTER	T76.51XA	ADULT FORCED SEXUAL EXPLOITATION, SUSPECTED
T74.21XA	ADULT SEXUAL ABUSE, CONFIRMED, INITIAL ENCOUNTER	T76.52XA	CHILD FORCED SEXUAL EXPLOITATION, SUSPECTED
Z04.41	ENCOUNTER FOR EXAM & OBSERVATION, ALLEGED ADULT	T74.51XA	ADULT FORCED SEXUAL EXPLOITATION, CONFIRMED
Z04.42	ENCOUNTER FOR EXAM & OBSERVATION, ALLEGED CHILD	T74.52XA	CHILD FORCED SEXUAL EXPLOITATION, CONFIRMED
O9A.411	SEXUAL ABUSE COMPLICATING PREGNANCY, 1 ST TRIMESTER	At least 1 of these dx codes is typically included on an FRE claim, but use the 'other' boxes to add more if necessary.	
O9A.412	SEXUAL ABUSE COMPLICATING PREGNANCY, 2 ND TRIMESTER		
OTHER		OTHER	

VISIT CODES:

CPT CODE		DESCRIPTION	FEE CHARGED	UNITS	TOTAL
	99203	OFFICE/OUTPATIENT VISIT FOR E&M, NEW PATIENT, 30 MIN			
	99204	OFFICE/OUTPATIENT VISIT FOR E&M, NEW PATIENT. 45 MIN			
	99205	OFFICE/OUTPATIENT VISIT FOR E&M, NEW PATIENT, 60 MIN			
	99213	EST. PATIENT OFFICE/OUTPATIENT VISIT, 15+ MIN			
	99214	EST. PATIENT OFFICE/OUTPATIENT VISIT, 25+ MIN			
	99215	EST. PATIENT OFFICE/OUTPATIENT VISIT, 40+ MIN			
	99245	OFFICE CONSULT, NEW OR EST. PATIENT			
	99283	EMERGENCY DEPARTMENT VISIT, LEVEL 3			
	99284	EMERGENCY DEPARTMENT VISIT, LEVEL 4			
	99285	EMERGENCY DEPARTMENT VISIT, LEVEL 5			
OVS BILLING CODE			FEE CHARGED	UNITS	TOTAL
	CVB02	FACILITY FEE		1	
	CVB19	REFERRED TO LOCAL DV, SA, OR VICTIM ASSISTANCE PROVIDER	Yes ☐ No ☐		
SUM OF TOTAL VISIT/FACILITY CHARGES					

Indicate Y or N next to 'CVB19' if victim was referred to any domestic violence, substance abuse, or victim assistance provider.

LABORATORY BILLING CODES:

CPT CODE	DESCRIPTION	FEE CHARGED	UNITS	TOTAL
36415	COLLECTION OF VENOUS BLOOD BY VENIPUNCTURE			
80053	COMP. METABOLIC PANEL			
80307	DRUG TEST			
81001	URINALYSIS, BY DIP STICK/TABLET REACTANT			
81003	URINALYSIS, BY DIP STICK/TABLET REACTANT			
81025	URINE PREGNANCY TEST			
84702	HCG PREGNANCY HORMONE TEST			
84703	HCG PREGNANCY HORMONE TEST			
85025	COMPLETE BLOOD COUNT			
85027	COMPLETE BLOOD COUNT			
86592	DIAGNOSTIC QUANTITATIVE SYPHILLIS TEST			
86701	QUALITATIVE/SEMIQUANTITATIVE IMMUNOASSAYS			
86703	QUALITATIVE/SEMIQUANTITATIVE IMMUNOASSAYS			
86704	IMMUNOLOGY-HEP B SCREENING			
86706	QUALITATIVE/SEMIQUANTITATIVE IMMUNOASSAYS			
86780	QUALITATIVE/SEMIQUANTITATIVE IMMUNOASSAY, SYPHILLIS			
86803	HEP C ANTIBODY			
87081	CULTURE FOR DETECTION OF GROUP B STREP, VAGINAL/RECTAL			
87110	MICROBIOLOGY CULTURE/TESTING CHLAMYDIA			
87340	INFECTIOUS AGENT ANTIGEN DETECTION			
87389	INFECTIOUS AGENT ANTIGEN DETECTION			
87661	INFECTIOUS AGENT DETECTION BY DNA/RNA			
87491	INFECTIOUS AGENT DETECTION BY DNA/RNA			
87591	INFECTIOUS AGENT DETECTION BY DNA/RNA			
87806	INFECTIOUS AGENT ANTIGEN DETECTION			
SUM OF TOTAL LABORATORY CHARGES				

COUNSELING/OTHER BILLING CODES:

HCPC CODE	DESCRIPTION	FEE CHARGED	UNITS	TOTAL
J0696	INJECTION OF CEFTRIAXONE SODIUM			
T1013	SIGN LANGUAGE/ORAL INTERPRETIVE SERVICES, PER 15 MIN			
CPT CODE	DESCRIPTION	FEE CHARGED	UNITS	TOTAL
56820	COLPOSCOPY/ENDOSCOPY OF VULVA, PERINEUM, INTROITUS			
96110	DEVELOPMENTAL SCREENING			
96361	INTRAVENOUS INFUSION, HYDRATION; EACH ADDT'L HOUR			
96372	INJECTION OF DRUG/SUBSTANCE INTO SKIN/MUSCLE			
99000	OBTAINING/TRANSPORT OF SPECIMEN TO LAB			
99170	ANOGENITAL EXAM, CHILD			
99354	PROLONGED PHYSICIAN SERVICES			
99355	PROLONGED E&M W/PATIENT, ADDT'L 30 MIN			
99401	PREVENTIVE MEDICINE COUNSELING, 15 MIN			
99402	PREVENTIVE MEDICINE COUNSELING, 30 MIN			
99403	PREVENTIVE MEDICINE COUNSELING, 45 MIN			
99404	PREVENTIVE MEDICINE COUNSELING 60			
ALL OTHER CODES	DESCRIPTION	FEE CHARGED	UNITS	TOTAL
SUM OF TOTAL COUNSELING/OTHER CHARGES				

Don't see a code you need on this form? List them here. Use additional sheets as necessary.

**NYS OFFICE OF VICTIM SERVICES
FORENSIC RAPE EXAM (FRE) REIMBURSEMENT PROGRAM BILLING FORM**

PHARMACY ADDENDUM

➤ PLEASE COMPLETE THE GRID BELOW.

NATIONAL DRUG CODE (ex. xxxxx-xxxx-xx)		DRUG NAME	FEE CHARGED	UNITS	TOTAL
1					
2					
3					
4					
5					
6					
7					
8					
9					
10					
11					
12					
13					
14					
15					
16					
17					
18					
19					
20					
21					
22					
23					
24					
25					
SUM OF TOTAL PHARMACY CHARGES					

Must
provide NDC
number for
each drug.

Please note that
OVS reimburses
for drugs at the
Medicaid rate.

Change Log

Version	Date	Version Notes
1.0	July 2024	Initial release
2.0	March 2026	Reformatted document Expanded billing and rendering provider guidance Added guidance on bill types Clarified itemized billing and acceptable forms Clarified reimbursement for eligible services Updated guidance on diagnosis codes, HIV PEP reimbursement, and tier caps Updated guidance on claim line-level reimbursement Clarified reimbursement methodology Added guidance on claim rejections and resubmissions